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Control Number: KNOX-SAT-2025-0027

Justification Review Document
for an Exception to Fair Opportunity – FAR 16

Program/Equipment: RN25-237 NetBackup (Veritas) software is needed for iPERMS & iPERMS-S System and Site Administrator to maintain support and update capabilities, U. S. Army Human Resources Command (HRC), Fort Knox, Kentucky.

Authority: Federal Acquisition Regulation (FAR) 16.505(a)(4)(i) – Restricting consideration to an item peculiar to one manufacturer (e.g., a particular brand-name, product, or a feature of a product that is peculiar to one manufacturer).

Amount: [Redacted]

Prepared by:

[Redacted]

Phone:
Date:

[Redacted]

Contracting Officer:

[Redacted]

Phone:
Date:

[Redacted]

Technical Representative:

[Redacted]

Phone:
Date:

[Redacted]

Requirements Representative:

[Redacted]

Phone:
Date:

[Redacted]

[Redacted]

[Redacted]

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1. Contracting Activity: Mission and Installation Contracting Command (MICC) Center – Fort Knox, 199 6th Avenue, Suite 250, Fort Knox, Kentucky 40121-5720.

2. Description of Action: U.S. Army Human Resources Command (HRC) requests a firm-fixed priced contract for Renewal of Veritas NetBackup software needed for iPERMS & iPERMS-S System and Site Administrator to maintain support and update capabilities. The Government projects contract award for April 2025. Due to a continuing resolution, award may be made subject to availability of funds pending allocation of fiscal year 2025 Operation & Maintenance, Army (OMA) funds. An acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplements 207.103(d)(i)(B).

3. Description of Supplies/Services: Veritas NetBackup is an enterprise-grade backup and recovery software solution. It is a backup-as-a-service product that provides data recovery and protection for enterprises. NetBackup securely restores and backs up files, raw partitions, and directories on a server known as a media server. It supports physical, virtual, and cloud systems and features automated disaster recovery capabilities USAHRC iPERMS program needs the Veritas NetBackup software to have backup copies of application and system data. This procurement consists of support for the following items:

LINE #	MANUFACTURER #	DESCRIPTION	QTY
1	32512-M0008	Veritas NetBackup Enterprise + Verified Support - On-Premise Subscription License - 1 Front End TB - 1 Year 1FRONTEND STD SUBS 12MO VERIFIED	120

Period of Coverage: 04/26/2025 - 04/25/2026

Total Value: [REDACTED]

4. Authority Cited: FAR 16.505(a)(4)(i) – Restricting consideration to an item peculiar to one manufacturer (e.g., a particular brand-name, product, or a feature of a product that is peculiar to one manufacturer).

5. Reason for Authority Cited: Veritas branded products are required for the following reasons:

a. The iPERMS backup systems infrastructure is comprised of Veritas branded products. Around 2006, the Decision, Analysis, Resolution (DAR) group conducted an analysis of various software products to determine which products provided the best solution for Army requirements at a reasonable cost. The process included initiating a request to industry for product lines, testing and analysis of functionality, and once a decision was made on product, procurement was conducted. As of that time, Veritas has remained the product best suited to meet the need and has become an integral part of the backup system infrastructure. This procurement is for renewal of software maintenance support for Veritas products that are incorporated into the existing infrastructure; the maintenance is proprietary to Veritas.

b. If this request is not approved, there is an unacceptable level of risk to the application backup and day to day operations that could make it difficult or impossible for HRC customers and stakeholders to perform their functions that support the Mission. If the data backup capability is degraded or has a total outage, every customer that needs access to an application and every application that depends upon the application may stop functioning.

c. To use other than the brand name items would incur additional cost and time for technical team personnel to ensure the other named items would be compatible with the existing iPERMS infrastructure.

6. Actions to Increase Competition: Periodically, DAR analysis is conducted to assess technological changes/improvements, and decisions are made to ensure the most effective (both cost/technology) remain in the best interest of the Government. The products to be acquired with this acquisition fit within the framework of a larger end to end system therefore, no other brands were considered. Upon end-of-life cycle of the entire system, all available software packages available from Computer Hardware Enterprise Software Solutions (CHESS) vendors will be considered.

7. Market Research: This action is an Information Technology (IT) procurement and CHESS is the mandatory source determined by the Army. HRC posted a request for market research quote on CHESS platform ITES-SW2, number 514788 on 22 November 2024 with responses due 25 November 2024. Responses were received from 3 vendors of varying business sizes affirming they could provide the product and provided market research quotes. Market research supports that this requirement shall be satisfied by soliciting through CHESS ITES-SW2 contract holders.

8. Other Facts:

Procurement history.

[REDACTED]

(1) Contract: W52P1J-20-D-0046
Period of Performance: 26 April 2024 to 25 April 2025
Authority: FAR 16.505(a)(4)
Contractor: WWT
Award Amount: \$116,905.20
Prior justification was for brand name product like that herein. Four offers were received.
Circumstances remain unchanged until end of life cycle of current platform.

(2) Contract: W9124D23F0251
Period of Performance: 26 April 2023 to 25 April 2024
Authority: FAR 16.505(a)(4)
Contractor: WWT
Award Amount: \$157,711.32
Prior justification was for brand name product like that herein. Four offers were received.
Circumstances remain unchanged until end of life cycle of current platform.

(3) Contract: W9124D21F0419
Period of Performance: 21 September 2021 through 20 September 2022
Authority: FAR 16.505(a)(4)
Contractor: WWT
Award Amount: \$88,187.40
Prior justification was for brand name product like that herein. Two offers were.
Circumstances remain unchanged until end of life cycle of current platform.

(4) Contract: W9124D20F0631
Period of Performance: 21 September 2020 through 20 September 2021
Authority: FAR 16.505(a)(4)
Contractor: WWT
Award Amount: \$87,548.38
Prior justification was for brand name product like that herein. Four offers were received.
Circumstances remain unchanged until end of life cycle of current platform.

(5) Contract: W9124D19F0601
Period of Performance: 28 September 2019 through 27 September 2020
Authority: FAR 16.505(a)(4)
Contractor: WWT
Award Amount: \$40,420.94
Prior justification was for brand name product like that herein. Two offers were received.
Circumstances remain unchanged until end of life cycle of current platform.

[REDACTED]

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9. Technical Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

Date: See electronic signature
Title: iPERMS IMO

10. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

Date: See electronic signature
Title: IT Specialist

11. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable based upon price analysis, as part of the basis, certified cost or pricing data will not be required. Federal Acquisition Regulation FAR 15.403: prices that will be agreed upon are based on the adequate price competition, comparison to the independent government estimate and a commercial item is being acquired.

[REDACTED]

Date: See electronic signature
Title: Contracting Officer

JoDeen M. Cuffe

12. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

Date: See electronic signature
Title: Contracting Officer

JoDeen M. Cuffe

[REDACTED]

JUN 2023

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Approval

Based on the foregoing justification, I hereby approve limiting sources in the procurement of iPERMS Veritas Backup Systems pursuant to the authority of FAR 16.505(a)(4)(i) Restricting consideration to an item peculiar to one manufacturer. The estimated value of the action is [REDACTED] with a period of coverage of 12 months commencing 26 April 2025 through 25 April 2026. The approval is subject to availability of funds and provided that the services and property herein described have otherwise been authorized for acquisition.

[REDACTED]

JoDeen M. Cuffe

Date: _____
Title: Contracting Officer

[REDACTED]

JUN 2023